

the power as subsisting, and referred it to the Master to inquire what timber was fit to be cut. The Court, therefore, did not regard the authority to the trustees as a mere power, but as a trust.

3. Power to "Trustee and his assigns."—Where a discretionary *legal power* is expressly limited to "A. and his assigns," the grantee or devisee of A., and even a claimant under him by operation of law as an heir or executor, may exercise the power (*a*); but in a *trust*, if an estate be vested in a trustee upon trust that he, his heirs, executors, administrators or assigns shall sell, *etc.*, the introduction of the word *assigns* will not authorise the trustee to assign the estate to a stranger (*b*), nor, if the assignment be made, will the stranger be capable of exercising the power (*c*).

4. Power given to a mortgagee.—In a *mortgage*, with a power of sale limited to the mortgagee, his heirs, executors, administrators, and assigns, the intention is that the power should go along with, and be annexed to, the security; and therefore, if the mortgage be assigned to a stranger, and the legal estate be conveyed to the stranger or to a trustee for him, the stranger, alone or with the concurrence of the trustee, can give a good legal and equitable title (*d*); and even if a mortgage be made to A. and B. to secure a *joint* advance, and the power of sale and signing receipts be limited to A. and B., *their heirs and assigns*, it has been held that as the power and security were plainly meant to be coupled together, and the security enures to the benefit of the survivor (the advance being a joint one), the survivor may also sell (*e*).

5. Power indicating personal confidence to "A. and his executors."—If a *power* indicating personal confidence be given to a "trustee and his executors," and the executor of the trustee dies having appointed an executor, the latter executor, though by law the executor not only of his immediate testa-

(*a*) How v. Whitfield, 1 Vent. 338, 339; 1 Freem. 476.

(*b*) The case of Hardwick v. Mynd, 1 Anst. 109, cannot in this respect be supported.

(*c*) See p. 608.

(*d*) Soloway v. Strawbridge, 1 K. & J. 371; 7 De G. M. & G. 594.

(*e*) Hind v. Poole, 1 K. & S. 383.